

You are here: Driver & Event Management > Event Management > Withdrawal Types & Descriptions > Admin Per Se

Admin Per Se



When a law enforcement officer arrests a person for a DUI violation, the officer shall also serve an order of suspension Admin Per Se / Implied Consent Affidavit, form #40-5807 to the person on behalf of the Division. The officer will then forward the Admin Per Se / Implied Consent Affidavit, form #40-5807, to the Division within 30 days after the arrest. The Admin Per Se / Implied Consent Affidavit, form #40-5807 is an MVD action that is effective:

- **15 days** after the date on which the order was served if the violation date is prior to January 1, 2023
- **30 days** after the date on which the order was served if the violation date is on or after January 1, 2023

On receipt of the Admin Per Se/ Implied Consent Affidavit, the Division shall:

- Suspend the customer's driving privilege for 30 days
- After the 30-day suspension the customer is eligible for a 60-day restricted driving privilege, view restriction requirements in [A.R.S. 28-144](#)
 - Alcohol or drug screening must be completed prior to issuing a restricted permit or reinstatement of driving privileges. If more than one violation requiring a screening is present, a screening must be completed for each violation
- If a second or subsequent offense is issued, or the individual is involved in an accident with serious physical injury, the customer will receive a 90-day suspension with no restricted permit eligibility

The Admin Per Se is an administrative action. When a court dismisses a 'driving under the influence violation', the Admin Per Se must be served in its entirety before it can be expunged.



If the Admin Per Se / Implied Consent Affidavit is not received within 30 days after the arrest, the Division shall not enter the order of suspension on the customer's record. This does not apply to violations that resulted in death or serious physical injury.

► Difference Between DUI and Admin Per Se

Violations On or After January 1, 2023

In lieu of the driving suspension and restriction an eligible customer may request a SIIRDL if the customer completes an alcohol or drug screening.

For more information about SIIRDL eligibility, view [Special Ignition Interlock Restricted Driver License \(SIIRDL\) Issuance](#) topic.



When the customer requests a restricted permit and the Customer Record does not reflect the Admin Per Se suspension or restriction, the customer must present the Admin Per Se/Implied Consent Affidavit. When the Affidavit is submitted in person, the CSR shall contact Technical Support Unit at (602) 712-4900. Only Technical Support Unit and the Records Unit personnel are authorized to enter the Admin Per Se Affidavit.

The customer may request a hearing or summary review. A hearing or summary review request stays the suspension until the hearing or summary review is held, except that the Division shall not return any surrendered license or permit to the person but may issue temporary licenses.

- Expunged (citation is removed from the customer's MVR), \$50 reinstatement fee is due
- Rescinded (dismissed), no reinstatement fees are required



The customer waives any rights to a hearing once a SIIRDL is issued.

- **Alcohol Screening**
- **Adding an Admin Per Se Incident**
- **How to Expunge an Admin Per Se**

Policies

[3.8.3 Suspensions](#)

[3.8.4 Revocations](#)

[3.8.6 Restricted License - Permit](#)

[3.8.7 Temporary Licenses](#)

[3.8.10 Administrative Hearing Request](#)

[3.8.12 Special Ignition Interlock Restricted Driver License \(SIIRDL\)](#)

Forms

[Admin Per Se Expungement Request, form #96-2004](#)

[Driver Improvement Compliance Report, form #99-0211](#)

[Travel License/Identification Application, form #40-5122](#)

[Travel License/Identification Application \(Spanish\), form #40-5122s](#)

Charts

[MVD License Suspensions](#)

HELPFUL LINKS

» [MVD / DMV Public Website](#) »

» [Customer Portal](#) »

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